

25TRCV00665 25TRCV00665

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV00665 Hearing Date: August 13, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – August 13, 2026

Calendar No.

PROCEEDINGS

Jasmine

Wells v. Abdi Warsame, et al.

25TRCV00665

1. Jasmine Wells' Motion to Compel Further Responses to
Form Interrogatories, Set One, and Request for Sanctions

2. Jasmine Wells' Motion to Compel Further Responses to Request
for Production of Documents, Set One, and Request for Sanctions

TENTATIVE RULING

Jasmine Wells' Motion to Compel Further Responses to
Form Interrogatories, Set One, and Request for Sanctions is deemed moot, in
part, and granted, in part.

Jasmine Wells' Motion to Compel Further Responses to Request for Production of Documents, Set One, and Request for Sanctions is taken off calendar. While this motion is apparently on the Court's calendar no such motion was ever filed with the Court, nor did Plaintiff file a separate statement in connection with this motion.

Background

Plaintiff's Complaint was filed on February 28, 2025. Plaintiff was involved in a motor vehicle collision with Defendants.

Motion to Compel Further Responses to Form Interrogatories

Where responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2030.300(a). Notice of the motion must be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2030.300(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2030.300(b).

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If

a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in sufficient compliance with CCP §§ 2030.300 and 2016.040. (Declaration, Osje J. Pena, ¶¶ 4-5).

Motion to Compel

Plaintiff moves to compel further responses to Form Interrogatories 15.1 and 16.1 through 16.5. Defendant states that it served further responses to Form Interrogatories 15.1 and 16.5 on October 14, 2025. (Decl., Robert Thacker, ¶ 8; Ex. A). Therefore, the motion is deemed moot.

The Court also notes that Defendant filed a second opposition to the motion to compel further responses to requests for production of documents that was never filed with the Court.

Sanctions

Plaintiff’s request for monetary sanctions is granted, in part. Further responses were only provided after the motion was filed.

Cal.

Rules of Court, Rule 3.1348 states: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Thus, in appropriate circumstances, the Court may still

award sanctions when the requested discovery is provided after the motion is filed. Here, the further responses were only provided after Plaintiff incurred the time and expense to file the motion.

Sanctions are awarded in favor of Plaintiff and against Defendant and Defendant's counsel in the total amount of \$1,060.00 which was derived by allotting 2 hours to prepare and appear at the requested \$500.00 per hour, plus \$60 in filing fee.

Sanctions are payable within 30 days of this date.

Plaintiff is ordered to give notice of this ruling.